



Unsafe Building Hearing July 10th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=sQzA0eiL1ok
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Unsafe Building Hearing Authority Meeting Summary

Meeting Date: July 10, 2025

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** [00:00:23](#) The meeting of the Unsafe Building Hearing Authority was called to order by presiding officials, entering the unsafe building law (IC 36-7-9) into the record.
- **Attendance:**
 - **Members Present:** Gretchen Cheeseman (Mayor), Dane Rydenower, and Jeff Green.
 - **City Staff / Administrators:** Taylor Reed, Melinda Coffee, Danny Han, Richard Rawlings (acting as administrators), Aubrey Christ (City Attorney), and Courtney Walker (acting recording secretary).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** [00:02:26](#) All participating parties and witnesses stood to be sworn in under oath before proceeding with case hearings.
- **Approval of Minutes:** *None explicitly addressed in the transcript.*

4. Substantive Business & Board Action

- **00:02:58 Case No. 1: 1523 West 8th Street** (Demo Order)
 - **Sponsor / Presenter:** Alicia Saunders (Property Manager, Middletown Property Group).
 - **Deliberation Summary:** The property was tagged on June 6 due to structural holes in the garage. The representative stated that a reinspection occurred yesterday to clarify required repairs, which will be completed within two weeks. The board agreed to modify the order from a demolition order to a rehab order and continue the case.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to modify the demolition order to a rehab order and continue to the August 14 hearing. **Passed Unanimously (Voice Vote).**
- **00:04:40 Case No. 8: 810 East Kirby Avenue** (Demo Order)
 - **Sponsor / Presenter:** Mr. Johnson (Representative, DNM Brothers LLC).
 - **Deliberation Summary:** Owned for two years, the property has been boarded up for three years. A building permit is approved and ready to be paid for. The board emphasized the need to make the interior habitable rather than just fixing the exterior.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue to September 11, requiring an inspection prior to the next hearing. **Passed Unanimously (Voice Vote).**
- **00:09:54 Case No. 15: 923 South Ping Drive** (Demo Order)
 - **Sponsor / Presenter:** Carl Long (Property Owner, 1505 East Kirby Avenue).
 - **Deliberation Summary:** Owner acquired the property via tax sale around October. Plans to rehab the interior, which he stated is in good condition despite broken windows caused by break-ins.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the order and continue for 90 days, requiring an inspection prior to the next hearing (October 9). **Passed Unanimously (Voice Vote).**
- **00:11:52 Case No. 19: 501 South Hawthorne Drive** (Rehab Order)
 - **Sponsor / Presenter:** Sherry Store (Property Owner) and her brother-in-law (Patrick).
 - **Deliberation Summary:** Property has been vacant since 2020 after the owner moved. Discussed issues with high grass/weeds (mow man scheduled to fix) and trash. The family is considering selling the property or tearing it down after removing belongings.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Motion to affirm the rehab and trash order (noting trash can be removed next month upon inspection) and continue for 30 days to establish a plan for the vacancy. **Passed Unanimously (Voice Vote).**
- **00:16:59 Case No. 21: 619 North Janney Avenue** (New Order / First Hearing)
 - **Sponsor / Presenter:** Sue (Interested Party / Neighbor).
 - **Deliberation Summary:** City staff (Melinda Coffee / Rebecca Moon) reported an inspection on June 13 indicated the property was acceptable for release, and a building permit is active.
 - **Item-Specific Public Input:** Sue expressed concerns regarding the vacant status and whether it is registered. Staff agreed to look into the vacant registry status.
 - **Action & Vote Disposition:** Motion to release the property based on the inspection. **Approved by Voice Vote** (Note: Board member voted against/expressed desire for more information, but motion carried).
- **00:20:14 Case No. 23: 1200 South Mulberry Street, Apartment #6** (Rehab Order)
 - **Sponsor / Presenter:** Daniel Vans (Tenant).
 - **Deliberation Summary:** Tenant detailed severe interior conditions (rotted bathroom wood, non-working faucets, holes in walls, burn near stove, sagging floors) and reported harassment and recent court actions regarding habitability. The corporate owner (T&Z LLC / Mulberry Apartments / Muncie LLC) failed to appear.
 - **Item-Specific Public Input:** Daniel Vans testified regarding the uninhabitable conditions, health impacts, and landlord disputes.
 - **Action & Vote Disposition:** Motion to affirm the rehab order, assess a **\$2,500 civil penalty** against the property owner for failing to comply/appear, and continue for 30 days. **Passed Unanimously (Voice Vote).**
- **00:27:19 Case No. 25: 3206 South Vine Street** (Demo Order)
 - **Sponsor / Presenter:** Shannon Faulenstein (Family Member / Prospective Owner).
 - **Deliberation Summary:** The owner (uncle) passed away in 2016, and the speaker lived there until January 2024. The family is currently working through obtaining deed signatures from cousins via affidavits (one signature remaining in Alabama). Gutting and yard maintenance have been addressed.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to affirm the order and continue for 60 days to September 11 to allow deed transfer completion. **Passed Unanimously (Voice Vote).**
- **00:32:12 Case No. 26: 409 West 8th Street** (Continued Demo Order)
 - **Sponsor / Presenter:** Gary Campbell and Dave Foreman.
 - **Deliberation Summary:** A prospective buyer/worker is currently living in and repairing the home (doors, windows, painting). An inspector attempted a walkthrough on Tuesday, but occupants did not answer the door.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Motion to continue for 30 days, requiring a successful walkthrough inspection. **Passed Unanimously (Voice Vote).**
- **00:36:42 Case No. 27: 1601 West 16th Street** (Continued Demo Order)
 - **Sponsor / Presenter:** Kenneth Ken (Friend of Owner / Representative).
 - **Deliberation Summary:** Discussed ongoing title/deed issues involving the owner's siblings (Charlene Wooten and Tracy McDaniel). A prospective buyer has paid back taxes and repaired the garage roof, but wants the deed cleared up before further investment.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 30 days to August. **Passed Unanimously (Voice Vote).**
- **00:39:41 Case No. 29: 21108 West Brighton Road** (Continued Order)
 - **Sponsor / Presenter:** Carl Brickman (Property Owner).
 - **Deliberation Summary:** Owner reported recent exterior updates (new roof, siding, soffit, fascia completed within the last week). Awaiting guttering, windows, and overgrowth cleanup. Owner failed to obtain a pre-hearing inspection or bring photographs.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 30 days, require an inspection prior to the next hearing, and impose a **\$150 fine** for failure to obtain an inspection. **Passed Unanimously (Voice Vote).**
- **00:39:54 Case No. 31: 500 North Jefferson Street** (Demo Order)
 - **Sponsor / Presenter:** Andrew Lear (Property Owner).
 - **Deliberation Summary:** The structure burned down completely. The owner is actively cleaning up debris using a dumpster and mowing the lot. Discussed foundation removal requirements if not rebuilding within a year.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days for property cleanup. **Passed Unanimously (Voice Vote).**
- **00:43:03 Case Nos. 33 & 34: 1022 East Kirby Avenue & 426-428 West Howard Street** (Demo / Rehab Orders)
 - **Sponsor / Presenter:** Tiara Winters (Property Owner).
 - **Deliberation Summary:** Lengthy debate regarding slow progress across two properties. The owner stated financial difficulties in obtaining bank loans for full rehabilitation of both properties, offering instead to paint, fix doors, and improve cosmetic/aesthetic appearance from the street for the Howard property.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:**
 - *1022 East Kirby Avenue:* Motion for a 30-day continuance without requiring immediate work. **Passed Unanimously (Voice Vote).**

- *426-428 West Howard Street*: Motion to continue for 30 days (August 14) requiring exterior paint, windows, and doors, plus a **\$150 fine** for failure to obtain an inspection. **Passed Unanimously (Voice Vote)**.
- **00:52:08 Case No. 35: 800 South Macedonia Avenue** (Rehab Order)
 - **Sponsor / Presenter:** Gome Shill (Property Owner).
 - **Deliberation Summary:** Owner stated he has been out of town for medical school commitments and cancer patient work in Indianapolis, and failed to call for a final inspection.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 30 days, impose a **\$150 fine** for failure to get an inspection, with release upon passing a final inspection. **Passed Unanimously (Voice Vote)**.
- **00:33:36 Case No. 37: 207 North Waldemar Avenue** (Rehab Order)
 - **Sponsor / Presenter:** Cliss Miller (Property Owner/Representative).
 - **Deliberation Summary:** Property cleanup was conducted yesterday. Remaining items will be moved to a family member's house within 2 weeks. The garage roof repairs remain pending.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days to September 11, requiring an inspection prior to the hearing. **Passed Unanimously (Voice Vote)**.
- **01:04:53 Case No. 42: 1723 South Madison Street** (Rehab Order)
 - **Sponsor / Presenter:** Lisa Brown (Representative for Owner).
 - **Deliberation Summary:** Building permit paid prior to hearing; electrical permit pending Monday return of electrician. Trees have been trimmed, and measurements for siding completed. Struggling to find a plumber due to local retirements.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 60 days with a required pre-hearing inspection. **Passed Unanimously (Voice Vote)**.
- **01:06:45 Case No. 43: 105 West Main Street** (Rehab Order)
 - **Sponsor / Presenter:** Jerry Den (Representative / Property Buyer).
 - **Deliberation Summary:** Discussed deed/recording discrepancies (property still registered under Mr. Cousari). Addressed tenancy/eviction issues with tenants in the rear house on the lot. Structural issues (cracked foundation/bowing walls) noted by staff.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 30 days, require a walkthrough inspection prior to the next hearing, and impose a **\$150 fine** for failure to obtain an inspection. **Passed Unanimously (Voice Vote)**.
- **01:15:19 Case No. 44: 2200 East Memorial Drive** (Rehab Order)
 - **Sponsor / Presenter:** Lisa Reed (Property Representative).

- **Deliberation Summary:** Significant progress reported: interior walls and roof portions installed, exterior siding completed. An inspection was conducted on the 8th. Plans include obtaining a demolition permit for a front portion of the building.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to continue for 90 days to October 9, requiring an inspection prior to the next hearing. **Passed Unanimously (Voice Vote).**
 - **01:18:05 Bulk Docket Action (Unrepresented / Default Cases):**
 - **Sponsor / Presenter:** Board Presiding Officer / Staff.
 - **Deliberation Summary:** For properties where no one appeared after due notice (Docket numbers: 2 through 7, 9 through 14, 16 through 18, 20, 22, 24, 28, 30, 32, 36, and 38 through 41), the board adopted the building commissioner's reports and staff-recommended orders as findings of the hearing.
 - **Action & Vote Disposition:** **Passed Unanimously (Voice Vote).**
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5. Open Public Comment / Citizen Forum

Note: Public comments were integrated directly into the specific property hearings rather than a separate general forum.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Next regular hearing dates scheduled (notably August 14, September 11, and October 9, 2025). Staff advised participants regarding fine payments and scheduling mandatory pre-hearing inspections.
 - **Adjournment:** **01:18:56** Motion to adjourn made and seconded. **Passed Unanimously (Voice Vote).**
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